



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session
Majority Research Staff

SB 1178: naturopathic physicians; drug administration

BLISS FLOOR AMENDMENT

1. Modifies the definition of an *approved school of naturopathic medicine* or *school of naturopathic medicine*.

BLISS FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO S.B. 1178
(Reference to Senate engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.
[Green underlining in brackets] indicates text added to new session law or text restoring existing law.
~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.
~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.
<<Green carets>> indicate a section added to the bill.
~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 32-1501, Arizona Revised Statutes, is amended to
3 read:

4 32-1501. Definitions

5 In this chapter, unless the context otherwise requires:

6 1. "Accepted therapeutic purpose" means treatment of a disease,
7 injury, ailment or infirmity that is competent and generally recognized as
8 safe and effective.

9 2. "Active license" means a current valid license to practice
10 naturopathic medicine.

11 3. "Adequate medical records" means legible medical records
12 containing, at a minimum, sufficient information to identify the patient,
13 support the diagnosis, describe the treatment, accurately document the
14 results, indicate advice and cautionary warning provided to the patient
15 and provide sufficient information for a similarly qualified practitioner
16 to assume continuity of the patient's care at any point in the course of
17 treatment.

18 4. "Approved clinical training program" or "clinical training
19 program" means a program for naturopathic medical students in which the
20 training occurred or is being conducted by or in conjunction with an
21 approved school of naturopathic medicine.

22 5. "Approved internship program" or "internship" means that the
23 program in which the training occurred or is being conducted has been
24 approved for internship training for physicians or for graduates of a
25 school of naturopathic medicine by the board or was approved or accredited
26 by an educational or professional association recognized by the board or
27 by another state's or country's licensing agency recognized by the board.

1 6. "Approved postdoctoral training" or "postdoctoral training"
2 means that the program in which the training occurred or is being
3 conducted has been approved for specialty training or for graduate medical
4 education in naturopathic medicine by the board or approved or accredited
5 by an educational or professional association recognized by the board or
6 by another state's or country's licensing agency recognized by the board.

7 7. "Approved preceptorship program" or "preceptorship" means that
8 the program in which the training occurred or is being conducted has been
9 approved for preceptorship training for physicians or for graduates of a
10 school of naturopathic medicine by the board or was approved or accredited
11 by an educational or professional association recognized by the board or
12 by another state's or country's licensing agency recognized by the board.

13 8. "Approved school of naturopathic medicine" or "school of
14 naturopathic medicine" means a school, college or university determined by
15 the board to have ~~[an] [A DEGREE-GRANTING, DOCTORAL-LEVEL NATUROPATHIC~~
16 ~~MEDICAL]~~ educational program that ~~[meets standards prescribed by the~~
17 ~~council on naturopathic medical education, or its successor agency, and~~
18 ~~that offers a course of study]~~ [REQUIRES DIDACTIC AND SUPERVISED CLINICAL
19 TRAINING AND] that, on successful completion, results in the awarding of
20 the degree of doctor of naturopathic medicine and whose course of study is
21 ~~[either]~~ [ANY] of the following:

22 (a) Accredited or a candidate for accreditation by ~~[an accrediting~~
23 ~~agency recognized by the United States secretary of education as a~~
24 ~~specialized accrediting agency for schools of naturopathic medicine]~~ [THE
25 COUNCIL ON NATUROPATHIC MEDICAL EDUCATION] or ~~[its]~~ [A] successor [OR
26 COMPARABLE ACCREDITING AGENCY].

27 ~~[(b) Accredited or a candidate for accreditation by an accrediting~~
28 ~~agency recognized by the council for higher education accreditation or its~~
29 ~~successor.]~~

30 ~~[(b) PROVIDED BY AN INSTITUTION OF HIGHER EDUCATION THAT IS~~
31 ~~ACCREDITED OR A CANDIDATE FOR ACCREDITATION BY AN INSTITUTIONAL~~
32 ~~ACCREDITING AGENCY RECOGNIZED BY THE UNITED STATES SECRETARY OF EDUCATION~~
33 ~~OR THE COUNCIL FOR HIGHER EDUCATION ACCREDITATION, OR ITS SUCCESSOR, OR~~
34 ~~ANY COMPARABLE FEDERALLY RECOGNIZED NATIONAL QUALITY-ASSURANCE BODY.]~~

35 ~~(c) FROM A DIPLOMA-GRANTING, DEGREE-EQUIVALENT INSTITUTION OF~~
36 ~~HIGHER EDUCATION IN CANADA THAT OFFERS A FULL-TIME, STRUCTURED CURRICULUM~~
37 ~~IN BASIC SCIENCES AND SUPERVISED PATIENT CARE COMPRISING OF A DOCTORAL~~
38 ~~NATUROPATHIC MEDICAL EDUCATION THAT REQUIRES AT LEAST ONE HUNDRED~~
39 ~~THIRTY-TWO WEEKS OF COURSEWORK TO BE COMPLETED WITHIN A PERIOD OF THIRTY~~
40 ~~MONTHS, THAT IS IN GOOD STANDING WITH THE BOARD AND THAT HAS PROGRAMMATIC~~
41 ~~ACCREDITATION BY THE COUNCIL ON NATUROPATHIC MEDICAL EDUCATION OR A~~
42 ~~SUCCESSOR OR COMPARABLE ACCREDITING AGENCY.]~~

43 9. "Board" means the naturopathic physicians medical board.

44 10. "Chelation therapy" means an experimental medical therapy to
45 restore cellular homeostasis through the use of intravenous, metal-binding

1 and bioinorganic agents such as ethylene diamine tetraacetic acid.
2 Chelation therapy does not include experimental therapy used to treat
3 heavy metal poisoning.

4 11. "Completed application" means that the applicant paid the
5 required fees and supplied all documents and information as requested by
6 the board and in a manner acceptable to the board.

7 12. "Controlled substance" means a drug, substance or immediate
8 precursor in schedules I through V of title 36, chapter 27, article 2 or
9 the rules adopted pursuant to title 36, chapter 27, article 2.

10 13. "Direct supervision" means that a physician who is licensed
11 pursuant to this chapter or chapter 13, 17 or 29 of this title:

12 (a) Is physically present and within sight or sound of the person
13 supervised and is available for consultation regarding procedures that the
14 physician has authorized and for which the physician remains responsible.

15 (b) Has designated a person licensed pursuant to this chapter or
16 chapter 13, 17 or 29 of this title to provide direct supervision in the
17 physician's absence.

18 14. "Doctor of naturopathic medicine" or "doctor" means a natural
19 person who is licensed to practice naturopathic medicine under this
20 chapter.

21 15. "Drug" has the same meaning prescribed in section 32-1901 but
22 does not include:

23 (a) Intravenous administration of legend drugs, except for:

24 (i) Vitamins, chelation therapy, ANTIBIOTICS, ANTIVIRALS,
25 ANTIFUNGALS and drugs used in emergency resuscitation and stabilization.

26 (ii) Minerals.

27 (iii) Nutrients. For the purposes of this item, "nutrient" means a
28 substance that provides nourishment for growth or metabolism and that is
29 manufactured and supplied for intravenous use by a manufacturer registered
30 with the United States food and drug administration or compounded by a
31 pharmacy licensed by the Arizona state board of pharmacy.

32 (b) Controlled substances listed as schedule I or II controlled
33 substances as defined in the federal controlled substances act of 1970
34 (21 United States Code section 802), except morphine, any drug that is
35 reclassified from schedule III to schedule II after January 1, 2014 and
36 any homeopathic preparations that are also controlled substances.

37 (c) Cancer chemotherapeutics classified as legend drugs.

38 (d) Antipsychotics.

39 16. "General supervision" means that the physician is available for
40 consultation regarding procedures that the physician has authorized and
41 for which the physician remains responsible.

42 17. "Legend drug" means any drug that is defined by section 503(b)
43 of the federal food, drug, and cosmetic act and under which definition its
44 label is required to bear the statement "Rx only".

1 18. "Letter of concern" means a nondisciplinary advisory letter
2 that is issued by the board to a person who is regulated under this
3 chapter and that states that while there is insufficient evidence to
4 support disciplinary action the board believes that the person should
5 modify or eliminate certain practices and that continuation of the
6 activities that led to the information being submitted to the board may
7 result in action against the person's license, certificate or
8 registration.

9 19. "Letter of reprimand" means a disciplinary letter that is
10 issued by the board and that informs a person who is regulated under this
11 chapter that the person's conduct violates state or federal law but does
12 not require the board to restrict the person's license, certificate or
13 registration because the person's conduct did not result in harm to a
14 patient or to the public.

15 20. "Limit" means taking a nondisciplinary action that alters the
16 physician's practice or professional activities if the board determines
17 that there is evidence that the physician is or may be mentally or
18 physically unable to safely engage in the practice of medicine.

19 21. "Medical assistant" or "naturopathic medical assistant" means a
20 person who is certified by the board as a medical assistant, who assists a
21 doctor of naturopathic medicine and who may perform delegated procedures
22 that are commensurate with the assistant's education and training under
23 the direct supervision of a doctor of naturopathic medicine and that do
24 not include diagnosing, designing or modifying established treatment
25 programs or those procedures prohibited by the board or by this chapter.

26 22. "Medically incompetent" means a person who is licensed,
27 certified or registered pursuant to this chapter and who lacks sufficient
28 naturopathic medical knowledge or skills, or both, to a degree that is
29 likely to endanger the health of patients.

30 23. "Natural substance" means a homeopathic, botanical, nutritional
31 or other supplement that does not require a prescription pursuant to
32 federal law before it is prescribed, dispensed or otherwise furnished to a
33 patient and that is prescribed by a physician who is licensed pursuant to
34 this chapter to enhance health, prevent disease or treat a medical
35 condition diagnosed by the physician.

36 24. "Naturopathic medical student" means a person who is enrolled
37 in a course of study at an approved school of naturopathic medicine.

38 25. "Naturopathic medicine" means medicine as taught in approved
39 schools of naturopathic medicine and in clinical, internship,
40 preceptorship and postdoctoral training programs approved by the board and
41 practiced by a recipient of a degree of doctor of naturopathic medicine
42 WHO IS licensed pursuant to this chapter.

43 26. "Nurse" means a person who is licensed pursuant to chapter 15
44 of this title.

1 27. "Physician" means a doctor of naturopathic medicine who is
2 licensed pursuant to this chapter.

3 28. "Practice of naturopathic medicine" means a medical system of
4 diagnosing and treating diseases, injuries, ailments, infirmities and
5 other conditions of the human mind and body, including by natural means,
6 drugless methods, drugs, nonsurgical methods, devices, physical,
7 electrical, hygienic and sanitary measures and all forms of physical
8 agents and modalities.

9 29. "Restrict" means taking a disciplinary action that alters the
10 physician's practice or professional activities if the board determines
11 that there is evidence that the physician is or may be medically
12 incompetent or guilty of unprofessional conduct.

13 30. "Specialist" means a physician who has successfully completed
14 approved postdoctoral training, who is certified by a specialty board of
15 examiners recognized by the board and who is certified by the board to
16 practice the specialty pursuant to this chapter.

17 31. "Unprofessional conduct" includes the following, whether
18 occurring in this state or elsewhere:

19 (a) Intentionally disclosing a professional secret or intentionally
20 disclosing a privileged communication except as either of these may
21 otherwise be required by law.

22 (b) Engaging in any dishonorable conduct reflecting unfavorably on
23 the profession.

24 (c) Committing a felony, whether or not involving moral turpitude,
25 or a misdemeanor involving moral turpitude. In either case conviction by
26 any court of competent jurisdiction or a plea of no contest is conclusive
27 evidence of the commission of the felony or misdemeanor.

28 (d) Habitual intemperance in the use of alcohol or any substance
29 abuse.

30 (e) Engaging in the illegal use of any narcotic or hypnotic drugs,
31 or illegal substances.

32 (f) Engaging in conduct that the board determines is gross
33 malpractice, repeated malpractice or any malpractice resulting in the
34 death of a patient.

35 (g) Impersonating another doctor of naturopathic medicine or any
36 other practitioner of the healing arts.

37 (h) Falsely acting or assuming to act as a member, an employee or
38 an authorized agent of the board.

39 (i) Procuring or attempting to procure a license or a certificate
40 pursuant to this chapter by fraud, by misrepresentation or by knowingly
41 taking advantage of the mistake of another person or agency.

42 (j) Having professional connection with or lending one's name to
43 enhance or continue the activities of an illegal physician or an illegal
44 practitioner of any healing art.

1 (k) Representing that a manifestly incurable disease, injury,
2 ailment or infirmity can be permanently cured, or falsely or fraudulently
3 representing that a curable disease, injury, ailment or infirmity can be
4 cured within a stated time.

5 (l) Offering, undertaking or agreeing to cure or treat a disease,
6 injury, ailment or infirmity by a secret means, method, treatment,
7 medicine, substance, device or instrumentality.

8 (m) Refusing to divulge to the board on demand the means, method,
9 treatment, medicine, substance, device or instrumentality used in the
10 treatment of a disease, injury, ailment or infirmity.

11 (n) Giving or receiving, or aiding or abetting the giving or
12 receiving of, rebates, either directly or indirectly.

13 (o) Knowingly making any false or fraudulent statement, written or
14 oral, in connection with the practice of naturopathic medicine or any
15 naturopathic treatment method.

16 (p) Engaging in immorality or misconduct that tends to discredit
17 the naturopathic profession.

18 (q) Having a license refused, revoked or suspended by any other
19 state, district or territory of the United States or any other country,
20 unless it can be shown that this action was not due to reasons that relate
21 to the ability to safely and skillfully practice as a doctor of
22 naturopathic medicine or to any act of unprofessional conduct in this
23 paragraph.

24 (r) Engaging in any conduct or practice that is contrary to
25 recognized standards of ethics of the naturopathic profession, any conduct
26 or practice that does or might constitute a danger to the health, welfare
27 or safety of the patient or the public, or any conduct, practice or
28 condition that does or might impair the ability to safely and skillfully
29 practice as a doctor of naturopathic medicine.

30 (s) Failing to observe any federal, state, county or municipal law
31 relating to public health as a physician in this state.

32 (t) Violating or attempting to violate, directly or indirectly, or
33 assisting in or abetting the violation of, or conspiring to violate this
34 chapter or board rules.

35 (u) Committing false, fraudulent, deceptive or misleading
36 advertising or advertising the quality of a medical or health care service
37 by a physician or by the physician's staff, employer or representative.

38 (v) Failing or refusing to maintain adequate medical records on a
39 patient or failing or refusing to make medical records in the physician's
40 possession promptly available to another physician or health care provider
41 who is licensed pursuant to chapter 7, 8, 13, 15, 17 or 29 of this title
42 on request and receipt of proper authorization to do so from the patient,
43 a minor patient's parent, the patient's legal guardian or the patient's
44 authorized representative or failing to comply with title 12, chapter 13,
45 article 7.1.

1 (w) Referring a patient to a diagnostic or treatment facility or
2 prescribing goods and services without disclosing in writing to the
3 patient that the physician has a pecuniary interest in the facility, goods
4 or services to which the patient is referred or prescribed. This
5 subdivision does not apply to a referral by one physician or practitioner
6 to another physician or practitioner within a group of physicians or
7 practitioners practicing together.

8 (x) Engaging in sexual intimacies with a patient in the course of
9 direct treatment.

10 (y) Failing to dispense drugs and devices in compliance with
11 article 4 of this chapter.

12 (z) Administering, dispensing or prescribing any drug or a device
13 for other than an accepted therapeutic purpose.

14 (aa) Falsely representing or holding oneself out as being a
15 specialist or representation by a doctor of naturopathic medicine or the
16 doctor's staff, employer or representative that the doctor is boarded or
17 board certified if this is not true or that standing is not current.

18 (bb) Delegating professional duties and responsibilities to a
19 person if the person has not been approved or qualified by licensure or by
20 certification to perform these duties or responsibilities.

21 (cc) Failing to appropriately supervise a naturopathic medical
22 student, a nurse, a medical assistant, a health care provider or a
23 technician who is employed by or assigned to the physician during the
24 performance of delegated professional duties and responsibilities.

25 (dd) Using experimental forms of diagnosis or treatment without
26 adequate informed consent of the patient or the patient's legal guardian
27 and without conforming to experimental criteria, including protocols,
28 detailed records, periodic analysis of results and periodic review by a
29 medical peer review committee as approved by the United States food and
30 drug administration or its successor agency.

31 (ee) Failing to furnish information in a timely manner to the board
32 or investigators or representatives of the board if this information is
33 legally requested by the board and failing to allow properly authorized
34 board personnel on demand to examine and have access to documents, reports
35 and records maintained by the physician that relate to the physician's
36 medical practice or medically related activities.

37 (ff) Failing to report in writing to the board evidence that a
38 person who is licensed, certified or registered pursuant to this chapter
39 is or may be medically incompetent, guilty of unprofessional conduct or
40 mentally or physically unable to safely practice or assist in the practice
41 of naturopathic medicine.

42 (gg) Conducting or engaging in an internship or preceptorship in
43 naturopathic medicine without being approved and registered by the board
44 for that internship or preceptorship.

45 (hh) Signing a blank, undated or predated prescription form.

1 (ii) Engaging in conduct that the board determines is gross
2 negligence, repeated negligence or negligence resulting in harm or death
3 to a patient.

4 (jj) Knowingly making a false or misleading statement in oral
5 testimony to the board on a form required by the board or in written
6 correspondence to the board, including attachments to that correspondence.

7 (kk) The failure of a physician who is the chief medical officer,
8 the executive officer or the chief of staff of an internship, a
9 preceptorship or a clinical training program to report in writing to the
10 board that the privileges of a doctor of naturopathic medicine, a
11 naturopathic medical student or a medical assistant have been denied,
12 limited, revoked or suspended because that doctor's, student's or
13 assistant's actions appear to indicate that the person is or may be
14 medically incompetent, is or may be guilty of unprofessional conduct or is
15 or may be unable to safely engage or assist in the practice of
16 naturopathic medicine.

17 (ll) Having action taken against a doctor of naturopathic medicine
18 by a licensing or regulatory board in another jurisdiction due to that
19 doctor's mental or physical inability to engage safely in the practice of
20 naturopathic medicine or the doctor's medical incompetence or for
21 unprofessional conduct as defined by that licensing or regulatory board
22 and that corresponds directly or indirectly to an act of unprofessional
23 conduct prescribed by this paragraph. The action taken may include
24 refusing, denying, revoking or suspending a license, otherwise limiting,
25 restricting or monitoring a licensee or placing a licensee on probation by
26 that licensing or regulatory board.

27 (mm) Having sanctions imposed by an agency of the federal
28 government, including restricting, suspending, limiting or removing a
29 person from the practice of naturopathic medicine or restricting that
30 person's ability to obtain financial remuneration.

31 (nn) Violating any formal order, probation, consent agreement or
32 stipulation issued or entered into by the board pursuant to this chapter.

33 (oo) Refusing to submit to a body fluid examination pursuant to a
34 board investigation of alleged substance abuse by a doctor of naturopathic
35 medicine.

36 (pp) Charging a fee for services not rendered or dividing a
37 professional fee for patient referrals among health care providers or
38 health care institutions or between these providers and institutions or a
39 contractual arrangement that has this effect.

40 (qq) Obtaining a fee by fraud, deceit or misrepresentation.

41 (rr) Charging or collecting a clearly excessive fee. In
42 determining whether a fee is clearly excessive, the board shall consider
43 the fee or range of fees customarily charged in this state for similar
44 services, in light of modifying factors such as the time required, the
45 complexity of the service and the skill required to perform the service

1 properly. This subdivision does not apply if there is a clear written
2 contract for a fixed fee between the physician and the patient that was
3 entered into before the service was provided.

4 (ss) With the exception of heavy metal poisoning, using chelation
5 therapy in the treatment of arteriosclerosis or as any other form of
6 therapy without adequate informed patient consent and without conforming
7 to generally accepted experimental criteria, including protocols, detailed
8 records, periodic analysis of results and periodic review by a medical
9 peer review committee.

10 (tt) Using a controlled substance unless it is prescribed by
11 another physician for use during a prescribed course of treatment.

12 (uu) Prescribing, dispensing or administering anabolic androgenic
13 steroids for other than therapeutic purposes.

14 (vv) Except in an emergency or urgent care situation, prescribing
15 or dispensing a controlled substance to a member of the naturopathic
16 physician's immediate family.

17 (ww) Prescribing, dispensing or furnishing a prescription
18 medication or a prescription-only device as defined in section 32-1901 to
19 a person unless the licensee first conducts a physical examination of that
20 person or has previously established a doctor-patient relationship. The
21 physical examination may be conducted through telehealth as defined in
22 section 36-3601 unless the examination is for the purpose of obtaining a
23 written certification from the physician for the purposes of title 36,
24 chapter 28.1. This subdivision does not apply to:

25 (i) A licensee who provides temporary patient supervision on behalf
26 of the patient's regular treating licensed health care professional.

27 (ii) An emergency medical situation as defined in section 41-1831.

28 (iii) Prescriptions written to prepare a patient for a medical
29 examination.

30 (iv) Prescriptions written or prescription medications issued for
31 use by a county or tribal public health department for immunization
32 programs or emergency treatment or in response to an infectious disease
33 investigation, a public health emergency, an infectious disease outbreak
34 or an act of bioterrorism. For the purposes of this item, "bioterrorism"
35 has the same meaning prescribed in section 36-781.

36 (v) Prescriptions written or antimicrobials dispensed to a contact
37 as defined in section 36-661 who is believed to have had significant
38 exposure risk as defined in section 36-661 with another person who has
39 been diagnosed with a communicable disease as defined in section 36-661 by
40 the prescribing or dispensing physician.

41 (vi) Prescriptions written by a licensee through a telehealth
42 program that is covered by the policies and procedures adopted by the
43 administrator of a hospital or outpatient treatment center.

44 (xx) If medical treatment is considered experimental or
45 investigational, failing to include in a patient's record a consent to

1 treatment document that is signed by the patient or the patient's parent
2 or legal guardian and that indicates that the patient or the patient's
3 parent or legal guardian has been informed of the risk of any treatment to
4 be provided and the expected cost of that treatment.

5 (yy) When issuing a written certification as defined in section
6 36-2801, failing or refusing to include in the adequate medical records of
7 a patient a copy of all of the following:

8 (i) The medical records relied on by the physician to support the
9 diagnosis or confirmed diagnosis of the patient's debilitating medical
10 condition.

11 (ii) The written certification.

12 (iii) The patient's profile on the Arizona board of pharmacy
13 controlled substances prescription monitoring program database.

14 (zz) Dispensing a schedule II controlled substance that is an
15 opioid.

16 Enroll and engross to conform

17 Amend title to conform

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